



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 21964174

Date: JAN. 23, 2025

Appeal of National Benefits Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Special Immigrant Juvenile)

The Petitioner seeks classification as a special immigrant juvenile (SIJ) under sections 101(a)(27)(J) and 204(a)(1)(G) of the Immigration and Nationality Act (the Act), 8 U.S.C. §§ 1101(a)(27)(J) and 1154(a)(1)(G). SIJ classification protects foreign-born children in this country who cannot reunify with one or both parents because of abuse, neglect, abandonment, or a similar basis under state law. The Director of the National Benefits Center denied the Petitioner's Form I-360, Petition for Special Immigrant Juvenile (SIJ petition), and this matter is before us on appeal, which we review de novo. *Matter of Christo's Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Petitioners must establish their eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375 (AAO 2010). Upon de novo review, we will dismiss the appeal.

I. LAW

To be eligible for SIJ classification, petitioners must show, among other things, that they are unmarried, under 21 years old, and have been subject to a state juvenile court order finding that they cannot reunify with one or both parents due to abuse, neglect, abandonment, or a similar basis under state law. Section 101(a)(27)(J)(i) of the Act; 8 C.F.R. § 204.11(b), (c)(1).¹ Further, they must submit documentary evidence of their age, "in the form of a valid birth certificate, official government-issued identification, or other document" that in U.S. Citizenship and Immigration Services' (USCIS') discretion establishes their age. 8 C.F.R. § 204.11(d)(2). Petitioners must establish their eligibility for the requested benefit at the time of filing. 8 C.F.R. § 103.2(b)(1).

USCIS has sole authority to implement the SIJ provisions of the Act and regulation. Homeland Security Act of 2002, Pub. L. No. 107-296, §§ 471(a), 451(b), 462(c), 116 Stat. 2135 (2002). SIJ classification may only be granted upon the consent of the Secretary of DHS, through USCIS, when the petitioner meets all other eligibility criteria and establishes that their SIJ classification request is bona fide by showing that a primary reason for seeking the required juvenile court findings was to obtain relief from parental abuse, neglect, abandonment, or a similar basis under State law. Section 101(a)(27)(J)(i)–(iii) of the Act; 8 C.F.R. § 204.11(b)(5). USCIS may also withhold consent

¹ The Department of Homeland Security (DHS) issued a final rule, effective April 7, 2022, amending its regulations governing the requirements and procedures for those who seek SIJ classification. See Special Immigrant Juvenile Petitions, 87 Fed. Reg. 13066 (Mar. 8, 2022) (revising 8 C.F.R. §§ 204, 205, 245).

if evidence materially conflicts with the eligibility requirements such that the record reflects the request for SIJ classification was not bona fide. 8 C.F.R. § 204.11(b)(5).

II. RELEVANT FACTS AND PROCEDURAL HISTORY

In 2017, the Petitioner and his uncle (M-A-²) petitioned the New York Family Court for [REDACTED] for SIJ related findings and guardianship appointment of the Petitioner, claiming [REDACTED] 8, 1998, as his date of birth. In [REDACTED] 2017, the court appointed guardianship of the Petitioner to M-A-, finding that it “shall last until [his claimed] 21st birthday”; and also issued a separate (SIJ) order, determining, among other SIJ related findings, that his reunification with one or both of his parents is not viable “due to abuse, neglect, abandonment, financial hardship” or similar basis under state law, and that it was not in the Petitioner’s best interest to be returned to Bangladesh, his country of nationality.

The Petitioner subsequently filed his SIJ petition in February 2018, at his claimed age 19, based on the 1998 birthdate. The Director ultimately denied the petition, concluding that the record did not demonstrate that the Petitioner’s request for SIJ classification is bona fide and therefore does not warrant USCIS’ consent because an immigrant visa petition (Form I-130) his uncle filed for the Petitioner’s mother, which listed him and both his parents as beneficiaries, was inconsistent with the Family Court’s parental reunification finding and the Petitioner’s assertions that his both parents abandoned him and he has not seen or spoken to his father for many years. Following a request for evidence (RFE) and a subsequent notice of intent to deny (NOID), the Director concluded that the Petitioner’s evidence and assertions did not overcome the derogatory evidence and thus did not establish that his request for SIJ classification is bona fide and warrants USCIS’ consent.

During the pendency of this appeal, we issued a NOID, notifying the Petitioner that he has claimed three dates of birth: [REDACTED] 8, 1991, [REDACTED] 8, 1992, and [REDACTED] 8, 1998, and the record contains specific derogatory evidence undermining his claimed 1998 birth, which the Director’s denial did not address. We noted in our NOID that he has obtained, used, and submitted at different times two Bangladesh birth certificates for the claimed 1998 birthdate, the first of which he presented to U.S. immigration officials when he entered this country in 2015. This birth certificate, contained in the record, shows that the claimed 1998 birth was registered significantly later in April 2015, *after* it was issued in February 2012, and indicates he obtained it a day before he entered the United States in 2015. The other, new version of his birth certificate submitted with his SIJ petition as proof of his claimed 1998 birth shows the claimed birth was registered in March 2012, and it was issued in May 2017, when he was seeking the SIJ and guardianship orders. We also notified the Petitioner that when he entered this country in 2015 using the 1998 birthdate, U.S. immigration officials specifically confronted him about the fact that he had previously claimed a 1991 birthdate to Mexican authorities, and in a sworn statement to the U.S. officials, he stated under oath that he was told to use the 1991 birthdate in order to travel through as an adult.³ However, when the Director sought clarification through a subsequent RFE as to the multiple birthdates, the Petitioner explicitly stated to the Director that he had “no knowledge about [his] multiple date(s) of birth” until he received the RFE, despite his prior sworn admission to the immigration officials that he knowingly and intentionally used the 1991 birthdate.

² We use initials to protect individuals’ privacy.

³ The Petitioner asserts on appeal that an “agent” instructed him to use the 1991 birthdate when he entered this country in December 2015, contrary to his sworn assertion to the immigration officials at the time that a “friend” told him to do so.

Our NOID further informed the Petitioner that USCIS conducted an overseas investigation to verify his claimed 1998 birthdate and related documents he submitted in support of his SIJ petition, including the new version of his 1998 birth certificate as noted above, a copy of his Bangladesh passport based on that birth certificate, his school documents, and vaccination record. The Director of Bangladesh Passport Office, however, confirmed that the Petitioner in fact has two passports, one with yet another (1992) birthdate issued in Bangladesh and the one with the 1998 birthdate (issued later in New York), and stated that the 1992 birthdate appears to be the Petitioner's true date of birth and he may have falsified his 1998 birthdate to obtain benefits in the United States. The Petitioner did not disclose, explain, or submit evidence of his original passport and 1992 birth certificate used to obtain it.⁴

Our NOID also explained that, according to the overseas investigators, the headmaster of the Petitioner's claimed high school in Bangladesh, as indicated in his school certificate he submitted, could not verify any information about his study or admission from his claimed school record. The overseas investigators further noted that his student ID card submitted below contains information that should not be on such ID cards, including his birthdate, parents' names, address, and card validity; and his vaccination card shows that he received various vaccines months after his claimed 1998 birth, contrary to Bangladesh's official guideline. *See generally* Directorate General of Health Services, <https://old.dghs.gov.bd/index.php/en/mis-docs/epi>. Because the record evidence did not overcome the derogatory evidence regarding the claimed 1998 birth, we notified him that he has not established his claimed birthdate as true, and thus he did not establish his SIJ petition was filed before his 21st birthday.

In response to our NOID, he reiterates he was born in 1998 and submits new documents, comprising a printout of online "Birth Registration Record Verification" (BRRV) based on his second 1998 birth certificate; a current Bangladesh passport bearing the 1998 birthdate based on the BRRV record; the Petitioner's own statement; affidavits from a friend, midwife, religious leader, and a "neighbor and close relative," attesting to the Petitioner's claimed 1998 birth, school attendance, and vaccination records; as well as a 2010 student club "Membership Form" listing his claimed 1998 birthdate.

III. ANALYSIS

The Petitioner has not met his burden of establishing that he was under 21 years old when he filed his SIJ petition in 2018, as required under the Act and related regulation at 8 C.F.R. § 204.11(b)(1). In light of the above derogatory evidence, including information from Bangladesh government officials, indicating that he likely altered his birth certificates and obtained two Bangladesh passports using the 1992 and 1998 birthdates, the evidence and assertions he provided as to his age is insufficient.

The Petitioner acknowledges the evidence contained in the record showing that he previously claimed and used the 1991 and 1992 birthdates. Following our NOID, he also explicitly admits the discrepancies pertaining to his claimed 1998 birthdate arising from his own documentary and testimonial evidence, as set forth in the NOID and stated above. He reasserts that he used a fraudulent Bangladesh passport listing the 1992 birthdate because he was given this passport and instructed to use it by an agent in order to travel to the United States as an adult. However, his assertions and

⁴ Bangladesh Births and Deaths Registration Act of 2004 requires individuals to provide a birth certificate when applying for a passport or enrolling a child into school. *See* Bangladesh: Births and Deaths Registration Act, Act No. 29 of 2004, 7 December 2004, <https://hague.mofa.gov.bd/en/site/page/Birth-Registration>; *see also* refworld, Bangladesh: Births and Deaths Registration Act, 2004, <https://www.refworld.org/docid/511b54192.html>.

supporting evidence are not sufficient to resolve the stated discrepancies regarding his age. The Petitioner did not disclose the fact that he has previously used the passport bearing the 1992 birthdate until he was notified of its existence and related inconsistencies as to the 1998 birthdate. Further, as stated, the Director of Bangladesh Passport Office confirmed the Petitioner's both passports bearing two different (1992 and 1998) birthdates, and based on this evidence, stated that the 1992 birthdate appears to be true and the 1998 birthdate may have been falsified. The Petitioner asserts that the agent handled everything in getting the passport listing the 1992 birthdate and the Petitioner "only appeared for fingerprinting and photo capture" during the application process. Other than this general assertion, he has not submitted, or explained in detail the circumstances as to, this passport and the birth certificate used to obtain it or to enroll in school in Bangladesh; and the record contains no objective evidence that the passport with the 1992 birthdate is in fact fraudulent or invalid, as he now claims. He also does not explain why he did not submit his original birth certificate and instead initially presented the first late-registered 1998 birth certificate he physically obtained while enroute to the United States, and then submitted his second 1998 birth certificate he obtained in this country in 2017.

Moreover, he concedes the discrepancies contained within the first version of the 1998 birth certificate, which, as noted, shows the 1998 birth was registered in 2015, oddly *after* it was issued in 2012.⁵ He also does not dispute the inconsistencies between the two 1998 birth certificates, including the conflicting birth registration dates. Further, he provides no explanation as to his inconsistent sworn statement to the Director that he had *no knowledge* about the 1991 birthdate, despite the fact that he previously admitted to U.S. immigration officials that he has knowingly and intentionally used it, as reflected in his prior sworn assertion to the officials (and also subsequent appeal assertion to us). The Petitioner nonetheless avers that the online BRRV record proves he was born in 1998. But he does not provide any independent probative evidence that the BRRV website is determinative of whether the underlying birth record (here, the second 1998 birth certificate) he used to update the online verification system was authentic or altered. The BRRV record here thus does not conclusively authenticate a birth record or overcome the stated derogatory evidence as to his claimed 1998 birth.

The Petitioner also highlights his new secondary evidence of birth submitted in response to our NOID, including his statement and various affidavits attesting to his claimed birth and school attendance in Bangladesh, as noted above. But the additional documents do not overcome the derogatory evidence or otherwise establish his claimed 1998 birthdate as true. As stated, the overseas investigators found that the high school official listed on the school certificate the Petitioner submitted below could not provide any information about his study or admission from the school record. Following our NOID, he asserts that he could not contact this official, and instead submits an affidavit from a friend stating that they attended the same school in Bangladesh "during [their] early years." However, this affidavit does not indicate that they attended high school together at the same time, from 2011 to August 2015, as the Petitioner specified in his NOID statement.⁶ He also does not dispute the overseas investigators' finding that the student ID card he submitted lists information (noted above) that should not be listed.

⁵ A Bangladeshi "Chairman" signed this certificate with official seal a day before the Petitioner entered the United States.

⁶ The Petitioner also asserted in his sworn statement below that he was attacked in Bangladesh in 2014 before he left the country in 2015, and he later sought related relief and protection from the United States. The record contains yet other evidence, including his prior sworn assertions, stating that he stopped going to school in 2014 and stayed in hiding until he left the country, further calling into question his present claim that he attended school in Bangladesh until August 2015.

The Petitioner further asserts through counsel that DHS verified his age through a dental examination when he entered the United States. But counsel's assertions are not evidence. *Matter of Obaighena*, 19 I&N Dec. 533, 534 n.2 (BIA 1988) (citation omitted). Here, the Petitioner himself did not submit a statement or any other documentary evidence of such medical record. Although the record reflects that he was given a basic medical screening when he entered this country in 2015, it does not contain any evidence that DHS performed a dental examination specifically to verify the Petitioner's age, as his counsel claims without providing any detail or identifying the alleged dental record. He further provides historical background information on Bangladesh's struggles in centralizing and modernizing its birth registration laws and practices. However, this historical reference does not explain the fact that the Petitioner intentionally obtained and used multiple birth certificates and passports bearing conflicting birth-related information before and after he entered this country; resolve the related discrepancies further arising from his own assertions and overseas investigation findings; or otherwise objectively and specifically substantiate as true his claimed 1998 birthdate.⁷ The remaining documents (including the student club membership form and affidavits attesting to the Petitioners' claimed birth, school and vaccination record) lack specific probative value as evidence of true age, and do not, by a preponderance of the evidence, overcome the derogatory evidence as to his claimed 1998 birthdate.

IV. CONCLUSION

Given the unresolved discrepancies related to the multiple dates of birth, the Petitioner has not met his burden of establishing his claimed age and that his SIJ petition was filed before his 21st birthday. 8 C.F.R. §§ 204.11(b)(1), (d)(2); *Matter of Chawathe*, 25 I&N Dec. at 375. The Petitioner thus has not established his eligibility for SIJ classification. As the foregoing analysis is dispositive of this appeal, we do not reach whether the Petitioner has demonstrated that his request for SIJ classification is bona fide and warrants USCIS' consent, and hereby reserve this issue.

ORDER: The appeal is dismissed.

⁷ See, e.g., Danish National ID Centre, Bangladesh: Birth registration and birth certificates, April 18, 2024, <https://nidc.dk/en/Document-Database/Search-by-country/Landeside/Country-specific-publications?name=Bangladesh> (stating that "[b]oth fraudulent and genuine documents containing fraudulent information are widely available and Bangladeshi birth certificates are no exception to this," and the trustworthiness of Bangladeshi birth certificates is further "challenged by the inability to verify the content" as they are commonly issued much later than the legal timeframe of 45 days and the registration system lacks information and verification mechanism for certificates issued before 2010).